1951

F

FAR EASTERN DEPARTMENT

JAPAN

70

F FJ1022/614

FROM

-FO. Minute.
Mr. Sw. Laver.

No.

Dated 4/6/51.

Received in Registry— 22/6/51.

Japanese Surrender Terms and Sovereignty over South Sakhalin and the Kuriles

REFERENCES

FJ ~~1022~~ 1013/11

MINUTES

Plm.
23/6

(Print)

(How disposed of)

(Action completed)	(Index)
25/6	3/8/51

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(F.J1013/11 — (Tokyo Savingram No 47 of 29/5/51, §8)

J.1022/614

Art. 1 of the Instrument of Surrender reads:- "We, acting by command of and in behalf of the Emperor of Japan, the Japanese Government and the ~~Japanese~~ Japanese Imperial General Headquarters hereby accept the provisions set forth in the Declaration issued by the Heads of the Governments of the U.S., China & Great Britain on the 26th July, 1945, at Potsdam, and subsequently adhered to by the U.S.S.R.

2. The relevant passage in the Potsdam Declaration is para (8), reading:- "The terms of the Cairo Declaration shall be carried out and Japanese sovereignty shall be limited to the islands of Honshu, Hokkaido, Kyushu, Shikoku and such minor islands as we [i.e. the President of the U.S., the President of the National Govt. of the Republic of China and the Prime Ministers of Great Britain] determine".

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3. The Cairo Declaration (1/12/43) stated as the purpose of the U.S.A., Great Britain and China to strip Japan of all Pacific islands seized or occupied since the beginning of the first world war in 1914, & to restore to the Republic of China all territories Japan has stolen from the Chinese such as Manchuria, Formosa & Pescadores. "Japan will also be expelled from all other territories

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NOTHING TO BE WRITTEN IN THIS MARGIN.

(26164) Wt. 9841-269 200m 5/50 G.S.St.

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4. Mention of South Sakhalin & the Kuriles is made only in the Livadia agreement of 11/2/45 [one of the Yalta agreements], in the following terms:-

"2. The former rights of Russia violated by the treacherous attack of Japan in 1904 shall be restored, viz:-

"a) The southern part of Sakhalin as well as all the islands adjacent to it shall be restored to the Soviet Union.

. . . . . .

"3. The Kuril [sic] islands shall be handed over to the Soviet Union."

The terms of the Livadia agreement were kept secret until 11th Feb. 1946.

5. A minute dated 4/9/45 by the Legal Adviser on the Potsdam Proclamation and the Terms of Surrender states:- "The surrender ... was clearly made on the basis of the Potsdam Declaration, and I do not think that the Allies could make use of the unconditional surrender to argue that they were released from any limitations of their rights and powers which may be implicit in or result from the Potsdam Declaration."

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7. A F.O. circular telegram (No. 8 of 9/2/46) reporting the publication of the Livadia Agreement comments:- "Soviet occupation of ~~the~~ Sakhalin and the Kuriles should be treated as a logical consequence of Japan's defeat."

W.W. Lawson
4/6/51

Mr. Johnston.

This shd. be entered for record.

W.H.J.
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Mr. C.P. Scott

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Mr. Lamb - pl. let me see 4/6 minutes dealing with marked passage in para. 8.

Letter.

INWARD [illegible] TELEGRAM

74

Foreign Office and Whitehall.

OUTWARD SAVING TELEGRAM

FROM TOKYO TO FOREIGN OFFICE

En Clair by Confidential Bag
Mr. G. L. Clutton

2.VI

No. 47 Saving
29th May, 1951

ADVANCE COPY

Rptd. Saving to - WASHINGTON No. 134
SINGAPORE No. 36
PEKING No. 11
MOSCOW No. 13
HONG KONG No. 15

Head of Japan and Pacific Dept.

CONFIDENTIAL

My telegram No. 45 Saving [of the 15th May].

Summary of Events in Japan for the Period 15th - 28th May.

(a) Japanese Domestic Affairs.

Japan has passed the phase of "animated suspense" described earlier in the year (my telegram No. 21 saving of the 6th March) and is showing an increasing initiative in setting her house in order for independent occupancy.

2. Political circles are buzzing with rumours about the expected mass "de-purge", Cabinet reorganisation and legislative reform. The Prime Minister has already embarked on what is expected eventually to become an extensive reorganisation of the Cabinet by nominating three of his present Cabinet Ministers to take up positions in the Liberal Party organisation as soon as the present Diet session ends. These changes, which must still be regarded as tentative, are to be as follows:- MASUDA Kaneshichi, Minister of Construction, is nominated as Secretary General of the Liberal Party in the place of SATO Eisaku, who is to be given the post of Minister of Agriculture and Forestry; HIROKAWA Kozen, now Minister of Agriculture and Forestry, is nominated as Chairman of the Executive Board of the Liberal Party; YOSHITAKE Keiichi, Vice Chairman of the Political Affairs Research Department of the Party is promoted to be Chairman of that Department in the place of NEMOTO Ryutaro, who takes the place of Masuda as Minister of Construction. I shall in due course report more fully on these moves, the full significance of which is not yet apparent, but Mr. Yoshida seems to be endeavouring to strengthen his own position vis-a-vis of the Liberal Party in anticipation of the possible "de-purge" of HATOYAMA Ichiro, whose followers in the Party have expressed dissatisfaction with the Prime Minister's independent ways and tendency to consult his personal "cronies" on policy to the exclusion of the Liberal Party machine.

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Mr. Lamb - pl. let me see 4/6 minutes dealing with revised passage in para. 8.

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3. Politicians of all parties are now jockeying for positions of advantage when the Peace Treaty is signed. An example of this manoeuvring has just been given by a group of members of the Democratic Party in the House of Councillors who announced on the 23rd May that they wished "to cooperate" with the Yoshida Cabinet on questions connected with the Peace Treaty. Though welcomed by Mr. Yoshida who promptly invited the group to a tea party, this move has been censured by the rest of the Democratic organisation and by Mr. Ashida in particular, on the grounds that it merely represents an attempt to climb on the Yoshida Treaty bandwagon, and in consequence the ambitious Democrats have had to refuse the Prime Minister's invitation.

4. The Diet, which was due to end its 10th session on the 28th May, has been faced with the usual accumulation of unfinished business. The Government has tried to obtain the Diet's agreement for an extension of the session; this was approved by the Lower House but referred back by the Upper and is still being debated. The most important Bills outstanding are those for the reorganisation of the Police and for the development of the Hokkaido, to both of which there is considerable opposition from both Socialists and Democrats on the grounds that, inter alia, they detract from the principle of local autonomy.

5. The Dowager Empress Sadako, the Emperor's mother, died on the 17th May.

6. On the 11th May the Government announced that, in response to their request reported at paragraph 2 of my telegram No. 28 saving of the 19th March, General Headquarters had arranged the return to Japan of all Japanese fishing vessels seized by the Republic of Korea beyond the "MacArthur Line". It is stated that thirty-six vessels, together with their crews, are now in Korean hands. The crew members will, on return, be tried by Japanese courts for violation of the "MacArthur Line" and officials of the Fishery Board have stated that Japanese deep-sea fishermen will be given a warning against recurrence of such violations.

(b) The Peace Treaty.

7. SUZUKI Mosaburo, the Chairman of the Socialist Party, reasserted, during an election tour on the 14th and 15th May, his Party's adherence to its three Peace Treaty principles of an "overall" peace, neutrality and no military bases. He declared that these three principles should be publicized abroad and announced his intention of so doing at an Asian Socialist Conference, which is due to be held in Rangoon in September, and at the COMISCO Meeting at Frankfurt in June, the latter of which he would himself attend.

8. The Foreign Affairs Department of the House of Representatives has continued its examination of members of the Government on various aspects of the Treaty. In

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9. On the 17th May, the Supreme Commander sent his greetings to the Fourth Annual Assembly of the United Nations/of Japan. He stated that conclusion of a Peace /Asso- ciation/Treaty would open the way for Japanese membership of the United Nations, but warned Japan that her candidature might be opposed by the Communist bloc, which did not wish to see the ranks of free nations increased within the United Nations organization.

(c) Anglo-Japanese Relations.

10. On the 22nd May a meeting attended by some 300 persons, mostly Japanese, was held in Tokyo to revive the Japan-British Society. The chair was taken by Mr. (formerly Prince) Tokugawa, and a panel of some twenty-five provisional Councillors, including three members of this Mission, were elected to proceed with the reconstitution of the Society pending an annual general meeting to be held next Autumn.

11. On the 18th May a party of Japanese Government officials left Tokyo for a two months' study tour of British governmental administration. The leader of the party, Minister of State, OKANO Kiyohide, followed on the 28th May. This is the first party of Japanese Government officials to visit the United Kingdom by direct invitation of His Majesty's Government since the war.

12. The Welfare Minister, KUROKAWA Takeo, has also paid a short visit to the United Kingdom on his own initiative following attendance at a meeting of the World Health Organization at Geneva.

(d) Occupation.

13. A number of changes have taken place in the upper ranks of General Headquarters. Major-General Willoughby has been succeeded as Assistant Chief of Staff for Intelligence by Brigadier-General R. F. Ennis who is newly arrived from Washington; Major-General Beiderlinden has been succeeded as Assistant Chief of Staff, G.1., by Brigadier-General B. L. Milburn, hitherto Commanding Officer of the Headquarters and Service Command of General Headquarters. Lieutenant General Stratemeyer, who recently suffered a heart attack, has been replaced as Commanding General of the Far East Air Forces by Lieutenant General Otto P. Weyland.

14. The General Headquarters Reserve Corps in Northern Japan, which was organised on the 2nd April to administer and train the 40th and 45th National Guard Infantry Divisions

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(my telegram No. 39 saving paragraph 12), has been designated as the 16th Corps and made a part of the F.E.C. with headquarters at Sendai.

(e) Communism.

15. On the 24th May yet another raid was conducted by the Special Examination Bureau of the Attorney General's Office on illegal Communist newspapers. Four papers were suspended and their copies confiscated. The number of Communist papers banned since the suspension of "Akahata" last summer has now reached thirteen.

(f) Economic.

16. On the 16th May the report on the mission headed by General Marquat, which recently visited Washington to discuss economic cooperation between the United States and Japan, was released to the press. This report, which has been communicated to the Japanese Government, has come as something of a cold douche to those Japanese who fondly imagined that Japan was to be assured by the United States of an unconditional supply of raw materials and a certain market for her products. It enjoins the Japanese to put their economic house in order if they hope to play a proper part in international trade. In particular they are warned to take adequate steps against inflation, to adopt and announce a policy of future international payments, to impose a sound budgetary policy, and to prevent a recurrence of unfair trade practices.

17. On the 24th May discussions began for the negotiation of a new payments arrangement between the United Kingdom and Japan. Though these negotiations will be conducted for the most part directly between the British and Japanese representatives, General Headquarters are represented at the meetings.

18. The Cabinet has approved the extension of office for a further five years of the Governor of the Bank of Japan, Ichimada Hisato.

(g) Visitors.

19. Mr. A. Cordier, Executive Assistant to the Secretary General of the United Nations and Mr. D. Protitch, Chief of the United Nations' Department of Security Council Affairs, are visiting Japan and Korea. I gather from Mr. Cordier with whom I have had a long conversation that one of the main objects of his visit is to study the relationship in the field between the Unified Command and the members of the United Nations and its organizations. Major-General A. J. H. Cassels C.B., C.B.E., D.S.O., who has been appointed to command the Commonwealth Division in Korea, has also been visiting Korea and Japan and was

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